IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT – 1

ITEM No.146

C.P.(CAA)/34(AHM)2022 in
C.A.(CAA)/25(AHM)2022

Order under Sections 230-232 of the Companies Act

IN THE MATTER OF:

Nova Properties Pvt Ltd **.....Applicants**
Orchid Plaza Design & Developers Pvt Ltd
Andura Infrastructure Products Pvt Ltd
Goyal and Company (Const.) Pvt Ltd

Order delivered on: 13/12/2022

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

The case is fixed for the pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

C.P.(CAA)/34(AHM)2022 in
C.A.(CAA)/25(AHM)2022

[Application under Sections 230-232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 and Rules framed thereunder]

Composite Scheme of Arrangement in the nature of Amalgamation

Between

Nova Properties Private Limited
(Transferor Company 1)

and

Orchid Plaza Design and Developers Private Limited
(Transferor Company 2)

and

Andura Infrastructure Products Private Limited
(Transferor Company 3)

with

Goyal and Co. (Const.) Private Limited

(Transferee Company)

and

Their respective Shareholders and Creditors

In the mater of

Nova Properties Private Limited
(CIN: U45201GJ2002PTC040499)

A Company incorporated under the Companies Act, 1956, having its registered office at 5, Ground Floor, A.P.M, Nr. Devpriya Bungalows, Opp. Nilkanth Palace, Prahalad Nagar Road, Vejalpur, Ahmedabad, Gujarat – 380015

…. Petitioner
(Transferor 1 Company)

Orchid Plaza Design and
Developers Private Limited
(CIN: U45201GJ2006PTC047742)

A Company incorporated under the Companies Act, 1956, having its registered office at 5, Ground Floor, A.P.M, Nr. Devpriya Bungalows, Opp. Nilkanth Palace, Prahalad Nagar Road, Vejalpur, Ahmedabad Gujarat – 380015

…. Petitioner
(Transferor 2 Company)

Andura Infrastructure Products
Private Limited
(CIN: U26966GJ2004PTC043695)

A Company incorporated under the Companies Act, 1956, having its registered office 2nd Floor APM Mall, Near Devpriya Bunglow, Opp. Nilkanth Palace, Anandnagar Char Rasta, Prahladnagar, Ahmedabad – 380015, India

…. Petitioner
(Transferor 3 Company)

With

Goyal and Co. (Const.) Private Limited
(CIN: U45201GJ1988PTC010799)

A Company incorporated under the Companies Act, 1956, having its registered office at Goyal House, Opp. Karnavati Club, S.G. Highway Ahmedabad – 380015, Gujarat

…. Petitioner
(Transferee Company)

Order Pronounced on : 13.12.2022

Coram: Dr.Madan Bhalchandra Gosavi-Member (Judicial)
Mr.Kaushalendra Kumar Singh-Member(Technical)

Appearance:

For the Petitioner Companies	:	Ms. Dharmishta N. Raval, Advocate.
For the Regional Director	:	Mr. Liladhar Sharma, Asst. Director

ORDER

1. This present joint petition has been filed by the Petitioner Companies under Sections 230-232 of the Companies Act, 2013 read with Companies (Compromise, Arrangement and Amalgamations) Rules, 2016 seeking approval of the Composite Scheme of Arrangement between M/s. Nova Properties Private Limited (Transferor 1 Company), Orchid Plaza Design Limited

(Transferor 2 Company) Andura Infrastructure Products Private Limited (Transferor 3 Company) and Goyal and Co. (Const.) Private Limited (Transferee Company) [Petitioner Companies] with effect from 1st April 2021, being the Appointed Date as mentioned in the Scheme.

2. The Petitioner Companies had filed a joint application before this Tribunal, being CA(CAA)25 of 2022, and inter alia sought dispensation of the meetings of the Equity Shareholders of all the Petitioner Companies, the dispensation of the meetings of the Preference Shareholders of Petitioner Companies 1,2 and 3, the dispensation of the meetings of the Secured Creditors of Petitioner Company 2 and Petitioner Transferee Company, while making a declaration that there are no Secured Creditors in Petitioner Companies 1 and 3 as well as no Unsecured Creditors in Petitioner Companies, for the purpose of considering and, if thought fit, approving, with or without modification(s), a Composite Scheme of Arrangement in the nature of Amalgamation between M/s. Nova Properties Private Limited (Transferor 1 Company), Orchid Plaza Design Limited (Transferor 2 Company) Andura Infrastructure Products Private Limited

(Transferor 3 Company) and Goyal and Co. (Const.) Private Limited (Transferee Company).

3. This Tribunal allowed the Company Application vide order dated 27th April 2022, passed in CA (CAA) 25 of 2022, and directed the Petitioner Companies to serve Notice of the Scheme in compliance with Sec. 230 (5) of the Companies Act, 2013 in the Form 'CAA-3' along with disclosures mentioned under Rule 6 to (i) the Central Government through the Regional Director, North Western Region; (ii) the Registrar of Companies, Gujarat; (iii) the Income-tax authorities and (iv) the Official Liquidator (in respect of Transferor Companies) stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, and in case no representation is received by the Tribunal within the stipulated period of 30 days, it should be presumed that the authorities have no representation to make.

4. In compliance of the directions contained in the order dated 27th April 2022, it is submitted that the Petitioner Companies have served notices to the Central Government through the Regional Director, North-western Region, the Registrar of

Companies, Gujarat, the Income-tax authorities concerned and Official Liquidator. The Petitioner Companies have filed an affidavit confirming service of notice on the aforesaid authorities.

5. The Petitioner Companies have jointly filed the present petition being CP (CAA) 34 of 2022 before this Tribunal seeking sanction of the Scheme.

6. This Tribunal by order dated 7th June 2022, admitted the petition and directed issuance of notice hearing be advertised in English daily 'Free Press", English Daily and Gujarati translation thereof in "Lok Mitra" Ahmedabad Edition not less than ten days before the date fixed for hearing, calling for their objections, if any, on or before the date of hearing. This Tribunal also directed to issue notice to the Regional Director, Registrar of Companies, Official Liquidator, and Income tax informing the date of hearing.

7. Pursuant to the aforesaid order dated 7th June 2022, passed by this Tribunal, the Petitioner Companies filed an affidavit of service dated 1st July with this Tribunal on 8th July 2022 submitting the proof of service of publication and also proof

of issue of notice to the Regional Director, Registrar of Companies, Official Liquidator and Income tax.

8. The Regional Director, North Western Region, MCA to whom notices were issued has filed his representations dated 14th June 2022 before this Tribunal. The Official Liquidator has also filed three reports with reference to the three Petitioner Transferor Companies in June 2022. The Income Tax department has also filed their reports with reference to the Petitioner Companies on 5/9/2022,6/9/2022 and 7/9/2022.

9. In response to the representation made by the Regional Director, ROC and OL, it is stated that the Petitioner Companies have filed affidavits dated 6th July 2022 and 18th July2022 giving their response to all the observations of the Regional Director and the Registrar Of Companies.

10. It is further submitted that with reference to the observations made by the Regional Director and Registrar of Companies the following submissions are made in the affidavit by the Petitioner Companies:

a) With reference to Para (1), 2(a), 2(b), 2(c), 2(e), 2(g), and 2(i) of the RD Report, there are no comments to offer.

b) With reference to Para 2(d) of the RD Report, it is submitted that the Petitioner Transferor Companies undertakes to pay the difference of the amount of fees payable on account of enhanced authorized capital, if any and undertakes to comply with the provisions of Section 232(3)(i) of the Companies Act, 2013.

c) With reference Para 2(f) of the RD Report it is submitted that the Petitioner Transferee Company has received a No Due Certificate from HDFC bank, NOC issued by Deutsche Bank and the Petitioner Transferee Company has filed Form CHG-4 for the satisfaction of charge for Punjab National Bank and HDFC Bank. Copies of the forms filed with the ROC are produced on record. It is further submitted that Petitioner Transferor Company 1 had pledged its mutual fund units in favour of Deutsche Bank to enable the Petitioner Transferee Company to avail loan facilities. Deutsche Bank has been shown as a secured creditor of the Petitioner

Transferee Company who has given its No objection and a consent affidavit of Bank which was also annexed in the Company Application.

d) With reference to Para 2(h) of the RD Report, the Petitioner Transferor Companies will pay such legal fee as directed by this Tribunal.

11. The Official Liquidator has submitted his three reports each dated 24th June 2022, with reference to the three Transferor Companies. As desired by the Official Liquidator the

a) Petitioner Transferor Companies also undertakes to preserve the books of accounts, papers and records and shall not dispose of them without prior permission of the Central Government.

b) Further, the Petitioner Transferor Companies undertakes to ensure Statutory Compliance of the applicable laws and further undertake that they shall not be absolved of any of the statutory compliances on the sanctioning of the Scheme.

c) The Petitioner Transferor Companies undertakes to pay fees, if any, as required under Section 232 of the Companies Act, 2013.

d) The Petitioner Transferor Companies undertakes to lodge certified copies of the order with the Superintendent of Stamps and Registrar of companies.

12. The Income Tax Department has filed its report regarding the outstanding dues of the Petitioner Company to the Income Tax Department. With reference to the same, it is submitted by the Petitioner Companies that the Petitioner Companies have already filed appeal which are pending consideration by the National Faceless Appeal Centre and with reference to the demand of Rs.1,04,910/- for the A.Y 2021-2022 appeal is filed before the Commissioner of Income Tax and with regard to the AY:2020-2021,2012-2013,2013-2014,2016-2017. Further, the Petitioner Companies have undertaken to pay the Income- Tax dues in accordance with the law. The Income Tax Department has not raised any other objection to the Scheme.

13. The Petitioner Companies have stated in the Petition that no inspection or investigation has been instituted or is pending against any of the petitioner companies under the provisions of the Companies Act, 2013. It is also stated that if there is any deficiency found, or violation committed of any enactment, statutory rules or regulations, the sanction granted by the Tribunal to the scheme will not come in the way of action being taken in accordance with law, against the concerned persons, directors and officials of the petitioners

14. Further, it is submitted that to the knowledge of the Petitioner Companies no winding-up proceedings have been filed or are pending against the Petitioner Companies under the Companies Act, 2013 or the corresponding provisions of the Companies Act, 1956.

15. Further, the Petitioner Transferor Companies undertake to ensure Statutory Compliance of the applicable laws and further undertake that they shall not be absolved of any of the statutory compliances on the sanctioning of the Scheme.

16. The Transferor Companies undertake to lodge certified copies of the order with the Superintendent of Stamps and Registrar of companies.

17. The petitioner companies have already placed on record a copy of the Valuation Report, issued by AAA Valuation Professional LLP, a registered valuer along with the detailed working and the basis of the valuation.

18. In compliance with the proviso to clause (e) of sub-section (7) of Section 230 of the Companies Act, 2013, certificate from the statutory auditors of the Petitioner Transferee Company dated 17th March 2022, is placed on record confirming that the accounting treatment as proposed under the Scheme is in conformity with the applicable Accounting Standards prescribed under section 133 of the Companies Act, 2013

19. Heard Ms. Dharmishta N. Raval, Ld. Counsel for the Petitioner Companies.

20. On the basis of the above facts and submissions made by the learned counsel and by considering the entire facts and

circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the petitioner companies. We are of the considered view that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. In the result, Company Petition No. CP (CAA) No. 34 of 2022 is allowed. The Scheme envisaging amalgamation of between M/s. Nova Properties Private Limited (Petitioner Transferor 1 Company) , Orchid Plaza Design Limited (Petitioner Transferor 2 Company) Andura Infrastructure Products Private Limited (Petitioner Transferor 3 Company) and Goyal and Co. (Const.) Private Limited (Petitioner Transferee Company) is hereby allowed. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

21. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in

accordance with law, against the concerned persons, directors and officials of the petitioners.

22. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

23. This Tribunal orders as under: -

(a) The Scheme of Arrangement as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

(b) It is declared that the Transferor Companies shall be dissolved without winding up.

(c) All the property annexed herewith as **"Annexure B",** right and powers of the Transferor Companies specified in the schedule hereto and all the other property, rights and powers of the Transferor Companies be transferred without further act or deed

to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, be transferred to and vested in the Transferee Company for all the estate and interest of the Transferor Companies therein but subject nevertheless to all charges now affecting the same, if any.

(d) The Transferee Company shall without further application allot to the members of the Transferor Companies, whose name is recorded in the register of members of the Transferor Companies on the record date, the shares in the Transferee Company to which they are entitled in the following ratio:

Sr. No.	Name of the Amalgamating Companies	No. of Equity Shares of Face Value of INR 10/- each and Paid up Value of INR 10/- each of the Amalgamating Companies	No. of Equity shares of INR 100/- each to be issued of the Amalgamated Company
1	Nova Properties Private Limited	1000	1986
2	Orchid Plaza Design And Developers Private Limited	1000	25
3	Andura Infrastructure Products Private Limited	1000	2

1.1 Consideration to the Preference Shareholders of Amalgamating Companies

In respect of fully paid up Non-cumulative Redeemable Preference shares

Sr. No.	Name of the Amalgamating Companies	No. of Non-Cumulative Redeemable Preference Shares of INR 100/- each fully paid up	No. of Non-cumulative Redeemable Preference shares of INR 100/- each fully paid up to be issued of the Amalgamated Company
1	Orchid Plaza Design And Developers Private Limited	1 (One)	1(One)

The Non-Cumulative Redeemable Preference Shares to be issued by the Amalgamated Company shall be at the same terms and conditions as issued by the Amalgamating Companies to its shareholders.

In respect of fully paid up Optionally Convertible Redeemable Preference Shares

Sr. No.	Name of the Amalgamating Companies)	No. of Non-Cumulative Optionally Convertible Redeemable Preference Shares of INR 100/- each paid up value of Rs.100 each of the Amalgamating Company	No. of Non-Cumulative Optionally Convertible Redeemable Preference shares of INR 100/- each paid up value of Rs.100 each to be issued of the Amalgamated Company
	Nova Properties Private Limited	1 (One)	1 (One)

(e) All proceedings, if any, now pending or against the Transferor Companies be continued by or against the Transferee Company.

(f) The Petitioner Companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered the Transferor Companies shall be dissolved and the Registrar of Companies shall place all documents relating to the Transferor Companies and registered with him on the file kept by him in relation to the Transferee Company and the files relating to the said all companies shall be consolidated accordingly.

(g) Upon Scheme being effective, the Authorised Capital of the Transferor Company shall be consolidated with the Authorised Capital of the Transferee Company as envisaged under Clause 18.1, 18.1.2.

(h) All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

(i) The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the Transferor Companies attached as Annexure-B with this order, duly authenticated by the

Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

(j) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

(k) The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/- each in respect of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Transferee Company.

(l) The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- each in respect of the petitioner Transferor Companies. The said fees to the Official Liquidator shall be paid by the Transferee Company.

24. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

25. The Company Petition CP (CAA) No.34 of 2022 in CA (CAA) No. 25 of 2022 is disposed of. No order as to costs.

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

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COMPOSITE SCHEME OF ARRANGEMENT IN THE NATURE OF AMALGAMATION BETWEEN NOVA PROPERTIES PRIVATE LIMITED AND ORCHID PLAZA DESIGN AND DEVELOPERS PRIVATE LIMITED AND ANDURA INFRASTRUCTURE PRODUCTS PRIVATE LIMITED AND GOYAL AND CO. (CONST.) PRIVATE LIMITED AND THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

(UNDER SECTIONS 230 TO 232 READ WITH SECTION 66 OF THE COMPANIES ACT, 2013

For, GOYAL & CO. (CONST.) PVT. LTD.
Director

For, Andura Infrastructure Products Pvt. Ltd.
Director

For, NOVA PROPERTIES PVT. LTD.
Director / Authorised Signatory

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD.
DIRECTOR

FOR, GOYAL AND CO. (CONST.) PVT. LTD.
DIRECTOR / AUTHORISED SIGNATORY

For, NOVA PROPERTIES PVT. LTD.
Director / Authorised Signatory

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD.
DIRECTOR

For, Andura Infrastructure Products Pvt. Ltd.
Director

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

PREAMBLE

This scheme of amalgamation (hereinafter referred to as the 'Scheme'), provides for the amalgamation of Nova Properties Private Limited, Orchid Plaza Design And Developers Private Limited and Andura Infrastructure Products Private Limited with Goyal And Co. (Const.) Private Limited, pursuant to the provisions of Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (**"the Act"**), read with the relevant Rules of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, including any statutory modification(s), amendment(s) or re-enactment(s) thereof for the time being in force..

The Scheme is divided into the following four parts:

Part I : Introductions, Definitions and Rationale
Part II : Share Capital
Part III: Amalgamation and Vesting
Part IV: Miscellaneous provisions and Conditionality of the Scheme

PART I
INTRODUCTIONS, DEFINITIONS AND RATIONALE

1. INTRODUCTIONS

1.1 **Nova Properties Private Limited (NPPL)** (Corporate Identification Number: U45201GJ2002PTC040499), a Company incorporated under the Companies Act, 1956, having its registered office at 5, Ground Floor, A.P.M, Nr. Devpriya Bungalows, Opp. Nilkanth Palace, Prahalad Nagar Road, Vejalpur, Ahmedabad GJ 380015 IN

NPPL has been incorporated with the main object to carry on and undertake as its principal business of builders, contractors, developers, organisers, promoters of cooperative societies, to deal in real' estate and property business by constructing, reconstructing, altering, demolishing, renovating, extending, improving, offices, residential house, duplex, row-houses, factories, warehouses, industrial estate/shed, commercial complex, individual estates, bungalows, tenements, flats, chawls, shops cinemas, buildings roads, bridges, dams, canals, and every sort of construction, works by consolidating, ' connecting subdividing, developing, an immovable properties and by letting and disposing of the same to establish, maintain, conduct and carry on the business of estate 'owners, dealers, agents, developers and to do the business as contractors of any sort of and to take construction, key contract of any kinds in/outside India with any person, entity or authority and to rent and advance money/assistance with or without interest security to any person having business connection with company along with object to acquire, build, construct, improve, develop, give or take in exchange or on lease, rent, hire, occupy, allow, control, maintain, operate, run, sell, dispose of, carry out

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD. DIRECTOR

For, Andura Infrastructure Products Pvt. Ltd. Director

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

For, GOYAL & CO. (CONST.) PVT. LTD. Director
FOR. GOYAL AND CO. (CONST.) PVT. LTD.
DIRECTOR / AUTHORISED SIGNATORY

For, Andura Infrastructure Products Pvt. Ltd.
Director
For, NOVA PROPERTIES PVT. LTD.
Director / Authorised Signatory

For, NOVA PROPERTIES PVT. LTD.
Director / Authorised Signatory

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD.

or alter as may be necessary or convenient any leasehold or freehold lands, movable or immovable properties, including building, workshops, warehouse, stores, easement or other rights, machineries, plant, work, stock in trade, industrial colonies, conveniences together with all modern amenities and facilities such as housing, schools, hospitals, water supply, sanitation, townships and other facilities or properties which may seem calculated directly or indirectly to advance the company's objects and interest either in consideration of a gross sum of a rent charged in cash or services.

1.2 **Orchid Plaza Design and Developers Private Limited** (Corporate Identification Number: U45201GJ2006PTC047742), a Company incorporated under the Companies Act, 1956, having its registered office at 5, Ground Floor, A.P.M, Nr. Devpriya Bungalows, Opp. Nilkanth Palace, Prahalad Nagar Road, Vejalpur, Ahmedabad GJ 380015 IN

OPDDPL has been incorporated with the main object to construct, execute, erect, carry out, equip, improve, organize, develop, buy, sell, maintain, administer, manage, control, promote, build, re-build, pull down, enlarge, alter, renovate, work and convenience of all kinds which expression includes, movable and immovable and building, residential township, colonies, flats, apartments, industrial estates, commercial buildings, warehouse, rods, drainage, pipe line, ropeways, railways, runways, aerodrame, dock, bus stations, harbours, piers, wharves, dams, barrages, bridges, weives, reservoirs lift, embankment, canal, irrigation, power house, transmission line, sanitary water lines, refrigerator lines, gas lines, electric lines, telegram lines, telephone lines, marines works, power supply work, earthwork, sewer, tanks, drains, culverts, channels, sewage, swimming pools and contracts of P.W.D., M.E.S. and Central Government, State Government, semi government, local bodies, public undertaking, private parties and generally to carry on the business of estate organisers, land developers, builders, contractors, engineers, architects, designers, surveyors, advisors, consultants and in all their respective branches like civil engineering, mechanical engineering, electric engineering, electronic engineering, structural engineering.

1.3 **Andura Infrastructure Products Private Limited** (AIPPL) (Corporate Identification Number: U26966GJ2004PTC043695), a Company incorporated under the Companies Act, 1956, having its registered office at 2nd Floor APM Mall, Near Devpriya Bunglow, Opp. Nilkanth Palace, Anandnagar Char Rasta, Prahladnagar, Ahmedabad – 380015.

AIPPL has been incorporated with the main object to carry on the business of production, manufacturing, processing, marketing, selling, trading, quarrying, mining, import, export and generally deal in stones, stone aggregates, sand crushed sand, granite, marble, metals and aluminum products, cement and cement products, wood, timber, minerals, paving blocks and all goods and products including building materials, own, lease premises for establishing, running manufacturing unit.

1.4 **Goyal and Co. (Const.) Private Limited (GCPL)** (Corporate Identification Number U45201GJ1988PTC010799) a Company incorporated under the Companies Act, 1956, having its registered office At Goyal House, Opp. Karnavati Club, S.G. Highway Ahmedabad GJ 380015 IN

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD. DIRECTOR

For, Andura Infrastructure Products Pvt. Ltd. Director

For, GOYAL & CO. (CONST.) PVT. LTD. Director

FOR, GOYAL AND CO. (CONST.) PVT. LTD. DIRECTOR / AUTHORISED SIGNATORY

For, NOVA PROPERTIES PVT. LTD. Director / Authorised Signatory

For, NOVA PROPERTIES PVT. LTD. Director / Authorised Signatory

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD. DIRECTOR

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

GCPL has been incorporated with the main object to undertake and/or direct all types of construction and the maintenance of or/and acquire by purchase, lease, exchange, hire or otherwise, lands, properties, buildings and estates of any tenure or any interest therein to sell, lease, let, mortgage or otherwise dispose off the same and to purchase, construct and sell for self or for any person free hold or lease hold lands, house property, buildings, offices, factories, workshops, godowns, farm houses, farms and any kind of landed properties or any share /interest therein and to carry on the business of land and estate agents on commission or otherwise without commission and to carry on the business of and act as promoters, organisers and developers of land, estates, properties, co-operative housing societies associations, housing schemes, shopping-office complexes, townships, farms, farm houses, holiday resorts, hotels, motels, and to deal with and improve such properties either as owner or as agents.

2. DEFINITIONS

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meanings:

2.1. **Act**" or "**The Act**" means the Companies Act, 2013 or any statutory modification or reenactment thereof;

2.2. "**Amalgamated Company**" means Goyal and Co.(Const.) Private Limited ("**GCPL**"), is a private limited Company incorporated under the provisions of the Companies Act, 1956 (CIN : U45201GJ1988PTC010799) having its registered office at Goyal House, Opp. Karnavati Club, S.G. Highway Ahmedabad GJ 380015 India;

2.1 "**Amalgamating Company 1**" means Nova Properties Private Limited ("**NPPL**"),is a private limited Company incorporated under the provisions of the Companies Act, 1956 (CIN : U45201GJ2002PTC040499) having its registered office at 5, Grd Floor, A.P.M, Nr. Devpriya Bungalows, Opp. Nilkanth Palace, Prahalad Nagar Road, Vejalpur, Ahmedabad GJ 380015 India;

2.2 "**Amalgamating Company 2**" means Orchid Plaza Design And Developers Private Limited ("**OPDDPL**"), is a private limited Company incorporated under the provisions of the Companies Act, 1956 (CIN : U45201GJ2006PTC047742) having its registered office at 5, Grd Floor, A.P.M, Nr. Devpriya Bungalows, Opp. Nilkanth Palace, Prahalad Nagar Road, Vejalpur, Ahmedabad GJ 380015 India;

2.3. "**Amalgamating Company 3**" means Andura Infrastructure Products Private Limited ("**AIPPL**"), is a private limited Company incorporated under the provisions of the Companies Act, 1956 (CIN: U26966GJ2004PTC043695) having

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD. DIRECTOR

For, Andura Infrastructure Products Pvt. Ltd. Director

For, GOYAL & CO. (CONST.) PVT. LTD. Director

For, Andura Infrastructure Products Pvt. Ltd.

For, NOVA PROPERTIES PVT. LTD. Director / Authorised Signatory

FOR. GOYAL AND CO. (CONST.) PVT. LTD. Director / Authorised Signatory

For, NOVA PROPERTIES PVT. LTD. Director / Authorised Signatory

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD. DIRECTOR

its registered office at 2nd Floor APM Mall, Near Devpriya Bunglow, Opp. Nilkanth Palace, Anandnagar Char Rasta, Prahladnagar, Ahmedabad – 380015, India;

2.4. "**Amalgamating Companies**" the terms collectively referred to as Amalgamating Company 1, Amalgamating Company 2 and Amalgamating Company 3.

2.5. "**Appointed Date**" mean 1st April, 2021, being the date and time with effect from which NPPL, OPDDPL, and AIPPL shall be amalgamated with and into GCPL in terms of this scheme and other relevant provisions of this Scheme, upon sanction of the Scheme by the Tribunal and the scheme coming into effect;

2.6. "**Applicable Law(s)**" means (a) all the applicable statutes, notification, enactments, act of legislature, listing agreement, bye-laws, rules, regulations, guidelines, rule of common law, policy, code, directives, ordinance, orders or other instructions having force of law enacted or issued by any Appropriate Authority including any statutory modifications or re-enactment thereof for the time being in force (b) administrative interpretations, writs, injunctions, directions, directives, judgments, arbitral awards, decree, orders, or governmental approvals of, or agreement with , any relevant authority, as may be in force from time to time;

2.7. "**Board**" or "**Board of Directors**" means the respective Board of Directors of NPPL, OPDDPL, AIPPL and GCPL and shall include a committee of such board duly constituted and authorized;

2.8. "**Business Day**" means any day, other than a Saturday and Sunday, on which banks are generally open for business in Gujarat, India;

2.9. "**Companies**" the term collectively refers to NPPL, OPDDPL, AIPPL and GCPL, as the case may be.

2.10. "**Effective Date**" means the day on which the last of the sanctions, and permissions specified in the scheme shall have been obtained and a certified copy of the order of the NCLT at Ahmedabad made under section 232 of the Companies Act, 2013, have been filed with the Registrar of Companies, of State of Gujarat at Ahmedabad.

Reference in the Scheme to the date of "**Coming into effect of this Scheme**" or "**Upon the Scheme being effective**" shall mean the effective date.

2.11. "**National Company Law Tribunal**" or "**NCLT**" means the National Company Law Tribunal, Ahmedabad Bench.

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Director / Authorised Signatory FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD.

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2.12. **"Reserve and Surplus"** means Reserve & Surplus as per audited financial statement as on 31/03/2021 of Amalgamating Companies and Amalgamated Company.

2.13. **"Scheme"**, **"the Scheme"** and **"this Scheme"**, means the present Composite Scheme of Arrangement in its present form or with any modifications or amendments approved, imposed or directed by the NCLT.

2.14. **"Tribunal"** means the National Company Law Tribunal (**NCLT**) of Gujarat at Ahmedabad having jurisdiction in relation to NPPL, OPDDPL, AIPPL and GCPL, or such other forum or authority as may be vested with any of the powers of a NCLT in relation to the Scheme under the Act.

2.15. **'Undertaking'** shall mean and include all the assets, rights and properties (hereinafter referred to as "the said Assets") and all the debts, liabilities, duties and obligations (hereinafter referred to as "the said Liabilities") of the Amalgamating Companies as on the Appointed Date. Without prejudice to the generality of above, the undertaking of the Amalgamating Companies shall include but is not limited to:

(i) All immovable properties i.e. land together with the buildings and structures standing thereon (whether freehold, leasehold, leave and licensed, right of way, tenancies or otherwise) and all documents (including panchnamas, declarations, receipts) of title, rights and easements in relation thereto and all rights, covenants, continuing rights, title and interest in connection with the said immovable properties;

(ii) all assets, as are movable in nature, whether present or future or contingent, tangible or intangible, in possession or reversion, corporeal or incorporeal (including plant and machinery, furniture, fixtures, office equipments, communication facilities, installations, vehicles), actionable claims, earnest monies and sundry debtors, financial assets, outstanding loans and advances, recoverable in cash or in kind or for value to be received, provisions, receivables, funds, cash and bank balances and deposits including accrued interest thereto with Government, semi-Government, local and other authorities and bodies, banks, customers and other persons, the benefits of any bank guarantees, performance guarantees;

(iii) all the investments, being the investments in subsidiaries Companies, joint venture Companies, associate Companies, Partnership firms or investments of any other nature.

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(iv) all permits, licenses, permissions including municipal permissions, rights of way, approvals, clearances, consents, benefits, registrations, rights, entitlements, credits, certificates, awards, sanctions, allotments, quotas, no objection certificates, exemptions, concessions, liberties and advantages (including those granted/issued/given by any Governmental, statutory or regulatory or local or administrative bodies for the purpose of carrying on the business of the Amalgamating Companies or in connection therewith) including those relating to the privileges, powers, facilities of every kind and description of whatsoever nature and the benefits thereto that pertain exclusively to the Amalgamating Companies.

(v) all contracts, agreements, service orders, operation and maintenance contracts, memoranda of understanding, memoranda of undertakings, memoranda of agreements, memoranda of agreed points, minutes of meetings, bids, tenders, expression of interest, letter of intent, hire and purchase arrangements, lease/license agreements, tenancy rights, agreements/panchnamas for right of way, equipment purchase agreements, agreement with customers, purchase and other agreements with the supplier/manufacturer of goods/service providers, other arrangements, undertakings, deeds, bonds, schemes, concession agreements, insurance covers and claims, clearances and other instruments of whatsoever nature and description, whether written, oral or otherwise and all rights, title, interests, claims and benefits there under

(vi) all applications (including hardware, software, licenses, source codes, para-meterisation and scripts), registrations, goodwill, licenses, trade names, trademarks, service marks, copy rights, patents, domain names, designs, trade secrets, research and studies, technical knowhow, confidential information and all such rights of whatsoever description and nature there off.

(vii) all rights to use and avail telephones, telexes, facsimile, email, internet, leased line connections and installations, utilities, electricity and other services, reserves, provisions, funds, benefits of assets or properties or other interests held in trusts, registrations, contracts, engagements, arrangements of all kind, privileges and all other rights, easements, liberties and advantages of whatsoever nature and wheresoever situated belonging to or in the ownership, power or possession and in control of or vested in or granted in favour of or enjoyed by the Amalgamating Companies or in connection with or relating to the Amalgamating Companies and all other interests of whatsoever nature belonging to or in the ownership, power, possession or

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control of or vested in or granted in favour of or held for the benefit of or enjoyed by the Amalgamating Companies;

(viii) all books, records, files, papers, engineering and process information, software licenses (whether proprietary or otherwise), test reports, computer programmes, drawings, manuals, data, databases including databases for procurement, commercial and management, catalogues, quotations, sales and advertising materials, product registrations, dossiers, product master cards, lists of present and former customers and suppliers including service providers, other customer information, customer credit information, customer/supplier pricing information, and all other books and records, whether in physical or electronic form, of the Amalgamating Companies;

(ix) all debts (whether secured or unsecured), borrowings including loans and borrowings from banks/financial institutions, obligations, duties and liabilities, including the contingent liabilities of the Amalgamating Companies;

(x) all legal or other proceedings of whatsoever nature of the Amalgamating Companies.

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning as prescribed to them under the Companies Act, 1956/2013, Income Tax Act, 1961 and any other Applicable Law.

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3. RATIONALE FOR THE SCHEME

The management of the Companies, has examined the relative business strengths, the potential commercial and other synergies of the Amalgamated Companies. Considering this, the present Scheme is likely to generate the following benefits and synergies:

3.1 Ensuring focused management in a combined entity, thereby resulting in efficiency of management and maximizing overall shareholders value.

3.2 Greater integration, financial strength and flexibility, for the amalgamated entity, which would result in maximizing overall shareholder value.

3.3 Greater efficiency in cash management of the amalgamated entity, which can be deployed more efficiently to fund organic and inorganic growth opportunities, to maximize shareholder value.

3.4 Administrative and operational rationalization.

3.5 Simplification of group structure.

The Scheme is in the interest of both the Companies involved and their respective shareholders, creditors, employees, debenture holders and debenture trustees, if any, and all other concerned and shall help these companies to achieve and fulfil the objectives more efficiently. The Scheme shall not in any manner be prejudicial to the interest of concerned shareholders or directors or creditors or key managerial personnel or debenture trustees, if any, or any other stakeholder, of either of the Companies or general public at large.

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PART II

4. SHARE CAPITAL

The authorized, issued, subscribed and paid-up share capital of NPPL, OPDDPL, AIPPL and GCPL are as under:

4.1 The Share Capital of the Amalgamating Company 1 (NPPL) dated March 31, 2021 is as under:

Authorized Share Capital	**Amount (INR)**
2,35,000 Equity Shares of Rs. 10/- each	23,50,000/-
5,96,500 Redeemable Preference Shares of Rs. 100/- each	5,96,50,000/-
Total	**6,20,00,000/-**
Issued, Subscribed and Paid-up Share Capital	
30,500 Equity Shares of Rs. 10/- each fully paid up	3,05,000/-
5,87,026 0.00% Non-Cumulative Redeemable Preference Shares of Rs. 100/- each fully paid up	5, 87,02,600-
Total	**5,90,07,600**

The authorized, issued, subscribed and paid-up share capital of Amalgamating Company 1 (NPPL) is the same as above as on the date of Board meeting sanctioning the Scheme.

4.2 The Share Capital of the Amalgamating Company 2 (OPDDPL) dated March 31, 2021 is as under:

Authorized Share Capital	**Amount (INR)**
11,50,000 Equity Shares of Rs. 10/- each	1,15,00,000/-
2,45,000 Redeemable Preference Shares of Rs. 100/- each	2,45,00,000/-
Total	**3,60,00,000/-**
Issued, Subscribed and Paid up Share Capital	
10,15,000 Equity Shares of Rs. 10/- each fully paid up	1,01,50,000/-
1,35,000 0.00% Non-Cumulative Optionally Convertible Redeemable Preference Shares of Rs. 100/- each fully paid up	1,35,00,000/-
105 263 0% Non-Cumulative Redeemable Preference Shares of Rs. 100/- each fully paid up	1,05,26,300
Total	**3,41,76,300**

The authorized, issued, subscribed and paid-up share capital of Amalgamating Company 2 (OPDDPL) is the same as above as on the date of Board meeting sanctioning the Scheme.

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4.3 The Share Capital of the Amalgamating Company 3(AIPPL) dated March 31, 2021 is as under:

Authorized Share Capital	Amount (INR)
20,00,000 Equity Shares of Rs. 10/- each	2,00,00,000/-
1,10,000 0% Redeemable Preference Shares of Rs. 100/- each	1,10,00,000/-
Total	**3,10,00,000/-**
Issued Share Capital	
7,99,400 Equity Shares of Rs. 10/- each	79,94,000/-
1,05,262 0.00% Non-Cumulative Redeemable Preference Shares of Rs. 100/- each, Rs 50 called up	1,05,26,200-
Total	**1,85,20,200**
Subscribed and Paid up Share Capital	
7,99,400 Equity Shares of Rs. 10/- each	79,94,000/-
1,05,262 0.00% Non-Cumulative Redeemable Preference Shares of Rs. 100/- each, Rs 50 paid up	52,63,100-
Total	**1,32,57,100/-**

The authorized, issued, subscribed and paid-up share capital of Amalgamating Company 3 (AIPPL) is the same as above as on the date of Board meeting sanctioning the Scheme.

4.4 The Share Capital of the Amalgamated Company (GCPL) March 31, 2021 is as under:

Authorized Share Capital	Amount (INR)
5,00,000 Equity Shares of Rs. 100/- each	5,00,00,000/-
Total	**5,00,00,000/-**
Issued, Subscribed and Paid up Share Capital	
3,13,800 Equity Shares of Rs. 100/- each fully paid up	3,13,80,000/-
Total	**3,13,80,000/-**

The authorized, issued, subscribed and paid-up share capital of Amalgamated Company (GCPL) is the same as above as on the date of Board meeting sanctioning the Scheme.

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PART III

5. AMALGAMATION AND VESTING

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Upon the Scheme becoming effective and with effect from the opening of business as on the Appointed Date, and subject to the provisions of this Scheme, the entire business and undertaking of the Amalgamating Companies shall, without any further act or deed, be and the same shall stand transferred to and vested in or deemed to have been transferred to or vested in the Amalgamated Company on a going concern, pursuant to the provisions of Section 230 to 232 and other applicable provisions of the Companies Act, 2013 and also in accordance with section 2(1B) of the Income Tax Act, 1961, without any further act or deed, as per the provisions contained herein and in this Scheme.

5.1 All immovable properties i.e. land together with the buildings and structures standing thereon (whether freehold, leasehold, leave and licensed, right of way, tenancies or otherwise) of the Amalgamating Companies and all documents (including panchnamas, declarations, receipts) of title, rights and easements in relation thereto and all rights, covenants, continuing rights, title and interest in connection with the said immovable properties;

5.2 All assets, as are movable in nature of the Amalgamating Companies, whether present or future or contingent, tangible or intangible, in possession or reversion, corporeal or incorporeal (including plant and machinery, furniture, fixtures, office equipment, communication facilities, installations, vehicles), actionable claims, earnest monies and sundry debtors, financial assets, outstanding loans and advances, recoverable in cash or in kind or for value to be received, provisions, receivables, funds, cash and bank balances and deposits including accrued interest thereto with Government, semi-Government, local and other authorities and bodies, banks, customers and other persons, the benefits of any bank guarantees, performance guarantees;

5.3 All the investments, including but not limited to the investment in subsidiaries companies, joint venture companies, associate companies, partnership firms or investments of any other nature, of the Amalgamating Companies.

5.4 All statutory licenses and approvals, including but not limited to, permissions, clearances, incentives, consents and authorization orders, and all other business certifications and all other registration certificates issued to the Amalgamating Companies under the Applicable Law(s).

5.5 All the liabilities, obligations including the charges or encumbrances on assets / undertaking, guarantees given, of the Amalgamating Companies, shall, without any further act or deed, be and stand transferred, to the Amalgamated Company, pursuant to the applicable provisions of the said Act, so as to become as from the Appointed Date, the debts, liabilities, duties and obligations of the

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Amalgamated Company. The consent of any third party or other person who is a party to any contract or arrangement by virtue of which debts, liabilities, duties and obligations liabilities have arisen, in order to give effect to the provisions of this Clause & Scheme. Provided however that, this shall not mean or result into enhancing the security for any loan, deposit or obligation created by the Amalgamated Company. The Amalgamated Company shall not be obliged to create any further or additional security therefor.

6. UPON COMING INTO EFFECT OF THE SCHEME

6.1 With effect from the Effective date and until such time the name of the Amalgamated Company is replaced in the relevant statutory/Government records, registers and contracts related to the assets and liabilities of the Amalgamated Company, the Amalgamated Company shall be entitled to raise invoices in the name of the Amalgamating Companies and utilize the name of the Amalgamating Companies as the division of the Amalgamated Company. Until such time, any amounts received by the Amalgamating Companies after the Effective Date, shall be deemed to be held in trust on behalf of the Amalgamated Company. Thereafter, all such sums shall be remitted by the Amalgamating Companies to the Amalgamated Company.

6.2 All cheques and negotiable instruments, payments orders received in the name of the Amalgamating Companies after the Effective Date, shall be accepted by the bankers of the Amalgamated Company and credited to the account of the Amalgamated Company. Similarly, bankers of the Amalgamated Company shall honour cheques issued by the Amalgamating Companies for payment after the Effective Date.

6.3 With effect from the Effective date and until such time the title, rights, interest in connection with all the immovable properties (land together with the buildings and structures standing thereon (whether freehold, leasehold, leave and licensed, right of way, tenancies or otherwise) in the names of the Amalgamating Companies, is transferred in the name of Amalgamated Company, the Amalgamated Company shall deem to hold such title, rights, interest in immovable properties in trust, on behalf in name of the Amalgamating Companies.

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6.4 With effect from the Effective date and until such time all statutory licenses and approvals, including but not limited to, permissions, clearances, incentives, consents and authorization orders, and all other business certifications and all other registration certificates issued to the Amalgamating Companies under the Applicable Law(s) are transferred to Amalgamated Company, the Amalgamated

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Company shall deem to hold in trust such statutory licenses and approvals in on behalf of the Amalgamating Companies.

6.5 The Amalgamated Company, at any time after the coming into effect of this Scheme, may execute deeds of confirmation in favour of any party to any contract or arrangement or memorandum of understanding to which the Amalgamating Companies are a party or any writings as may be necessary to be executed in order to give formal effect to the above provisions. The Amalgamated Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings in the name of the Amalgamating Companies to carry out or perform all such formalities or compliance, referred to above on the part of the Amalgamated Company to be carried out or performed.

7. TAXES

7.1 All taxes (including but not limited to advance tax, tax deducted at source, minimum alternate tax, any tax credits including Minimum Alternate Tax ("MAT") credit, taxes withheld/paid in a foreign country, Goods and Services Tax ("GST"), etc.) payable by or refundable to the Amalgamating Companies, including all or any refunds or claims shall be treated as the tax liability or refunds / claims, etc., as the case may be, of the Amalgamated Company, and any tax incentives, benefits (including claims for unabsorbed tax depreciation, unabsorbed tax loses, unabsorbed book depreciation and unabsorbed book loss) advantages, privileges, exemptions, benefits, credits, tax holidays, remissions, reductions, etc., as would have been available to the Amalgamating Companies, shall upon the Scheme being effective, be available to the Amalgamated Company.

7.2 Upon the Scheme being effective, the Amalgamated Company shall be entitled to claim refunds or credits, including input tax credit, with respect to taxes paid by, for, or on behalf of, the Amalgamating Companies, under Applicable Law(s), including income tax (including tax losses), Minimum Alternate Tax ("MAT"), GST, CENVAT or any other tax, whether or not arising due to any *inter se* transaction, even if the prescribed time limits for claiming such refunds or credits have lapsed.

7.3 Upon the coming into effect of the Scheme, all tax compliances under any tax laws by the Amalgamating Companies on or after Appointed Date shall be deemed to be made by the Amalgamated Company.

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7.4 Upon the Scheme being effective, any advance tax, self-assessment tax, minimum alternate tax including unutilized MAT credit up to the Appointed Date and/or credit available for Tax Deducted at Source ("TDS") or vested with the Amalgamating Companies, including any taxes paid and taxes deducted at source and deposited by the Amalgamated Company on inter se transactions during the period between the Appointed Date and the Effective Date shall be treated as advance tax paid by the Amalgamated Company and shall be available to the Amalgamated Company for set-off against its liability under the Income-tax Act, 1961 and any excess tax so paid shall be eligible for refund together with interest. Any TDS certificates issued by the Amalgamated Company to, or for the benefit of, the Amalgamating Companies under the Income-tax Act, 1961 with respect to the inter se transactions would be available to the Amalgamated Company to seek refund from the tax authorities in compliance with law. Further, TDS deposited, TDS certificates issued or TDS returns filed by the Amalgamating Companies on transactions other than inter se transactions during the period between the Appointed Date and the Effective Date shall continue to hold good as if such TDS amounts were deposited, TDS certificates were issued and TDS returns were filed by the Amalgamated Company. Any TDS deducted by, or on behalf of, the Amalgamating Companies on inter se transactions will be treated as advance tax deposited by the Amalgamated Company.

7.5 The Amalgamated Company is also expressly permitted to claim refunds, credits, including restoration of input credit, tax deduction in respect of nullifying of any transaction between the Amalgamating Companies and the Amalgamated Company.

8. REVISION OF ACCOUNTS / RETURNS

8.1 It is hereby provided that upon the Scheme being effective, the Amalgamated Company is also expressly permitted to reopen and revise its financial accounts for any relevant year, income tax returns, withholding tax returns, GST return and any other statutory returns and filings under the tax laws, notwithstanding that the period of filing /revising such return may have lapsed to obtain TDS certificates, including TDS certificates relating to transactions between the Amalgamating Companies and the Amalgamated Company , and to claim refunds, advance tax and withholding tax credits, etc., pursuant to the provision of this Scheme.

9. COMPLICANCE WITH SECTION 2(1B) OF THE INCOME-TAX ACT, 1961

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The provisions of this Chapter as they relate to the amalgamation of Amalgamating Companies, with and into Amalgamated Company , have been drawn up to comply with the conditions relating to "Amalgamation" as specified under the tax laws, including section 2(1B) and other relevant sections of the Income tax Act, 1961. If any terms or provisions of Part III of this Chapter are found to be or interpreted to be inconsistent with any of the said provisions at a later date, whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the aforesaid provisions of the tax laws shall prevail.

Part III of this Chapter shall then stand modified to the extent determined necessary to comply with the said provisions. Such modification will however not affect other parts of the Scheme. The power to make such amendments as may become necessary shall vest with the Board of Directors of Amalgamating Companies and Amalgamated Company, which power shall be exercised reasonably in the best interests of the companies concerned.

10. BUSINESS AND PROPERTY IN TRUST AND CONDUCT OF BUSINESS OF THE AMALGAMATING COMPANIES FOR THE AMALGAMATED COMPANY

With effect from the Appointed Date and up to and including the Effective Date:

10.1 The Amalgamating Companies shall be carrying on and be deemed to have been carrying, on all business and activities and shall hold and stand possessed of and shall be deemed to hold, and stand possessed of all assets, rights, title, interest, authorities, contracts, investments and strategic decisions for and on account of, and in trust for the Amalgamated Company;

10.2 All income or profits accruing or arising to the Amalgamating Companies, or all costs, charges, expenses or losses arising or incurred by it (including the effect of taxes, if any, thereon), shall, for all purposes, be treated as profits, income, costs, charges, expenses, taxes or losses, as the case may be, of the Amalgamated Company;

10.3 It is clarified that any advance tax paid / TDS credits / TDS certificates received by the Amalgamating Companies, shall be deemed to be the advance tax paid by / TDS credit / TDS certificate of the Amalgamated Company.

10.4 All assets howsoever acquired by the Amalgamating Companies for carrying on its business, operations or activities and the liabilities relating thereto shall be deemed to have been acquired and are also contracted for and on behalf of the Amalgamated Company.

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10.5 The Amalgamating Companies shall also be entitled, pending sanction of the Scheme, to apply to the Central Government, State Government, and all other agencies, department and statutory authorities concerned, wherever necessary, for such consents, approvals and sanctions which Amalgamated Company may require including the registration, approvals, exemptions, relieves, etc., as may be required / granted under any law for the time being in force for carrying on business of the Amalgamated Company.

10.6 Without prejudice to the above, the Amalgamating Companies from the date of filing this Scheme with the NCLT up to and including the Effective Date, shall not make any change in its capital structure, whether by way of increase (by issue of equity shares on a rights basis, bonus shares or otherwise) decrease, reduction, reclassification, sub-division or consolidation, reorganization, or in any other manner except under any of the following circumstances:

(i) By mutual consent of the respective Board of Directors of the Amalgamating Companies and the Amalgamated Company; or

(ii) By way of any obligation already subsisting as on the date of filing this Scheme with the NCLT

10.7 The transfer of assets, properties, liabilities or Undertaking(s) and the continuance of proceedings by or against the Amalgamating Companies, shall not affect any transaction or proceedings already concluded by the Amalgamating Companies on or after the Appointed Date, to the end and intent that the Amalgamated Company accepts and adopts all acts, deeds things done and executed by the Amalgamating Companies in regard thereto, as done executed by the Amalgamated Company on behalf of itself.

10.8 The Amalgamating Companies undertakes that it will preserve and carry on the business with diligence and utmost business prudence and agrees that it will not, alienate, charge, mortgage or encumber or otherwise deal with or dispose of any assets or any part thereof or recruit new employees (in each case except in the ordinary course of business) or undertake substantial expansion or change the general character of the business; and

10.9 The Amalgamating Companies and/or the Amalgamated Company shall be entitled, pending sanction of the Scheme, to apply to the Central/State Government(s), regulatory/local/administrative bodies and all other agencies, departments and authorities concerned, as are necessary under any Applicable Law for such consents, approvals and sanctions which the Amalgamated Company may require, in order to carry on the business of the Amalgamating Companies.

For, Andura Infrastructure Products Pvt. Ltd.
Director

For, GOYAL & CO. (CONST.) PVT. LTD.
Director

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DIRECTOR / AUTHORISED SIGNATORY

For, Andura Infrastructure Products Pvt. Ltd.
Director

For, NOVA PROPERTIES PVT. LTD.
Director / Authorised Signatory

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD.
DIRECTOR

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD.
Director / Authorised Signatory

11. CONTRACTS, DEEDS, BONDS AND OTHER INSTRUMENTS

11.1 Subject to the other provisions contained in the Scheme, all contracts, deeds, bonds, debentures, agreements and other instruments of whatever nature to which the Amalgamating Companies is a party, subsisting or having effect immediately before the Effective Date shall remain in full force and effect against or in favour of the Amalgamated Companies, as the case may be, and may be enforced as fully and as effectually as if, instead of the Amalgamating Companies, the Amalgamated Company had been a party thereto.

11.2 It is clarified that in case of any such instruments including contracts, deeds, bonds, debentures etc., wherever required, shall amend or modify such instrument etc., as may be appropriate, by appending, attaching or affixing thereto such addendum, stickers, papers, supplementary modification deeds etc. with or without affixing the Common Seal of the Company, to denote and signify the Amalgamated Company as a party thereto stepping instead and in place of the Amalgamating Companies. Further, the Amalgamated Company shall be deemed to be authorized to execute any such deeds, writings or confirmations on behalf of the Amalgamating Companies and to implement or carry out all formalities required on the part of the Amalgamating Companies to give effect to the provisions of this Scheme.

12. LEGAL PROCEEDINGS

If any suit, writ petition, appeal, revision or claims or action before any statutory or quasi-judicial authority or tribunal other proceedings of whatever nature(hereinafter called "the Proceedings") by or against the Amalgamating Companies be pending, the same shall not abate, be discontinued or be in any way prejudicially affected by reason of the amalgamation of the Amalgamating Companies or of anything contained in the Scheme, but the Proceedings may be continued, prosecuted and enforced by or against the Amalgamated Company in the same manner and to the same extent, as it would be or might have been continued, prosecuted and enforced by or against the Amalgamating Companies, as if the Scheme had not been made. On and from the Effective Date, the Amalgamated Company shall and may initiate any legal proceedings for and on behalf of the Amalgamating Companies.

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13. STAFF, WORKMEN AND EMPLOYEES OF THE AMALGAMATING COMPANIES

All the staff, workmen and other employees in the service of the Amalgamating Companies immediately before the amalgamation under the Scheme, shall become the staff, workmen and employees of the Amalgamated Company, on the basis that:

13.1 Their service shall be continuous and shall not be interrupted by reason of the amalgamation;

13.2 The terms and conditions of service applicable to the said staff, workmen or employees after such amalgamation shall not in any way be less favorable to them than those Applicable to them immediately before the amalgamation; and

13.3 It is expressly provided that as far as Provident Fund, Gratuity Fund, Superannuation Fund or any other Fund created or existing for the benefit of the staff, workmen and other employees of the Amalgamating Companies are concerned, upon the Scheme becoming effective, the Amalgamated Company shall stand substituted for the Amalgamating Companies for all purposes whatsoever related to the administration or operation of such Funds or in relation to the obligation to make contributions to the said Funds in accordance with provisions of such Funds as per the terms provided in the respective Trust Deeds. It is the aim and intent that all the rights, duties, powers and obligations of the Amalgamating Companies in relation to such Funds shall become those of the Amalgamated Company and all the rights, duties and benefits of the employees of the Amalgamating Companies under such Funds and Trusts shall be protected. It is clarified that the services of the employees of the Amalgamating Companies will also be treated as having been continuous for the purpose of the aforesaid Funds or provisions.

14. ISSUE OF THE CONSIDERATION BY THE AMALGAMATED COMPANY

14.1 CONSIDERATION TO THE EQUITY SHAREHOLDERS HOLDING FULLY PAID UP EQUITY SHARES OF AMALGAMATING COMPANIES

Upon the effectiveness of the Scheme, in consideration of the amalgamation of and vesting of Amalgamating Companies with and into Amalgamated Company and in terms of the Scheme, Amalgamated Company shall, without any further application, act, instrument or deed, issue and allot to the equity shareholders of Amalgamating Companies holding fully paid up equity shares

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(whose names are registered in the Register of Members of Amalgamating Companies or his /her/its legal heirs, executors or administrators or, as the case may be, successors), in the following ratio:

Sr. No.	Name of the Amalgamating Companies	No. of Equity Shares of Face Value of INR 10/- each and Paid up Value of INR 10/- each of the Amalgamating Companies	No. of Equity shares of INR 100/- each to be issued of the Amalgamated Company
1	NPPL	1000	1986
2	OPDDPL	1000	25
3	AIPPL	1000	2

Any fractional entitlement arising on this account shall be rounded up on upper side for this purpose.

14.2 CONSIDERATION TO THE PREFERENCE SHAREHOLDERS OF AMALGAMATING COMPANIES

In respect of fully paid up Non-cumulative Redeemable Preference shares

Sr. No.	Name of the Amalgamating Companies	No. of Non-Cumulative Redeemable Preference Shares of INR 100/- each fully paid up	No. of Non-cumulative Redeemable Preference shares of INR 100/- each fully paid up to be issued of the Amalgamated Company
1	OPDPL	1 (One)	1(One)

The Non-Cumulative Redeemable Preference Shares to be issued by Amalgamated Company shall be at the same terms and conditions as issued by the Amalgamating Companies to its shareholders.

In respect of fully paid up Optionally Convertible Redeemable Preference Shares

Sr. No.	Name of the Amalgamating Companies)	No. of Non-Cumulative Optionally	No. of Non-Cumulative Optionally

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		Convertible Redeemable Preference Shares of INR 100/- each paid up value of Rs.100 each of the Amalgamating Company	Convertible Redeemable Preference shares of INR 100/- each paid up value of Rs.100 each to be issued of the Amalgamated Company
	NPPL	1 (One)	1 (One)
	OPDDPL	1 (One)	1 (One)

The Non-Cumulative Optionally Convertible Redeemable Preference Shares to be issued by Amalgamated Company shall be at the same terms and conditions as issued by the Amalgamating Companies to its shareholders.

14.3 On the amalgamation of Amalgamating Companies with Amalgamated Company, all the inter Company investment in the equity shares and/or Non-Cumulative Redeemable Preference Shares and Non-Cumulative Optionally Convertible Redeemable preference shares and balances shall be cancelled off.

14.4 The new equity shares, Non-Cumulative Redeemable Preference Shares and Non-Cumulative Optionally Convertible Preference Shares issued and allotted by Amalgamated Company in terms of the scheme shall be subject to the provisions of the memorandum and articles association of Amalgamated Company and shall rank pari-passu in all respects.

14.5 The issue and allotment of new equity shares, Non-Cumulative Redeemable Preference Shares and Non-Cumulative Optionally Convertible Preference Shares to the members of Amalgamating Companies pursuant to clause 14.1 and 14.2 of this Scheme is an integral part of the scheme. The approval of this scheme by the members of Amalgamated Company shall be deemed to be due compliance with all applicable provisions of the Companies Act 1956 or Companies Act 2013 including but not limited to Section 62(1) (c) of the Companies Act 2013 if applicable for the issue and allotment of new equity shares, Non-Cumulative Redeemable Preference Shares and Non-Cumulative Optionally Convertible Preference Shares by Amalgamated Company to the members of Amalgamating Companies.

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14.6 Where the new equity shares, Non-Cumulative Redeemable Preference Shares and Non-Cumulative Optionally Convertible Preference Shares of

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Amalgamated Company are to be allotted to heirs, executors or administrators or, as the case may be, to successors of deceased equity shareholders and/or preference shareholders of Amalgamating Companies the concerned heirs, executors, administrators or successors shall be obliged to produce evidence of title, satisfactory to the Board of Directors of Amalgamated Company.

15. ACCOUNTING TREATMENT IN THE BOOKS OF AMALGAMATED COMPANY

15.1 Upon this Scheme becoming effective, the Amalgamated Company shall follow the method of accounting as prescribed under Appendix-C 'Business Combinations of entities under common control' of Ind AS 103 (Business Combination prescribed under Section 133 of the Act, as notified under the Companies (Indian Accounting Standard) Rules, 2015 and generally accepted accounted principles, as may be amended from time to time.

15.2 The Amalgamated Company shall record the assets, liabilities and reserve of the Amalgamating Company as transferred to the Amalgamated Company pursuant to this Scheme, at their respective book values, as appearing in the books of the Amalgamating Company on the Appointed Date. No adjustments shall be made to reflect fair values, or recognize any new assets or liabilities. The only adjustments that are made are to harmonize accounting policies.

15.3 The identity of the reserves of the Amalgamating Company, shall be preserved and they shall appear in the financial statements of the Amalgamated Company in the same manner and form, in which they appeared in the financial statements of Amalgamating Company, prior to this Scheme becoming effective. Accordingly, if prior to this Scheme becoming effective there is any reserve in the financial statements of the Amalgamating Company available for distribution, whether as bonus shares or dividend or otherwise, the same would also be available in the financial statements of Amalgamated Company for such distribution pursuant to this Scheme becoming effective.

15.4 All inter-company payables, receivables (including loans, advances etc.) and balances between the Amalgamating Companies and the Amalgamated Company, shall cancelled and shall accordingly not record any of such payables, receivables and balances in their books.

15.5 The difference between the assets, liabilities and reserve & surplus of the Amalgamating Company to be transferred pursuant to this Scheme to the Amalgamated Company, after making the adjustment for the clause 15.4 and

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DIRECTOR

value of consideration, shall be adjusted in accordance with **Appendix-C** 'Business Combinations of entities under common control' of Ind AS 103 (Business Combination prescribed under Section 133 of the Act, as notified under the Companies (Indian Accounting Standard) Rules, 2015 and generally accepted accounted principles, as may be amended from time to time.

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NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

16. **DISSOLUTION WITHOUT WINDING UP**

Upon this Scheme becoming effective, Amalgamating Company shall be dissolved without winding up pursuant to the provisions of Section 232 of the Act.

17. **VALIDITY OF EXISTING RESOLUTIONS, ETC.**

Upon the coming into effect of the Scheme, the resolutions of Amalgamating Company as are considered necessary by the Board of Directors of Amalgamated Company which are validly subsisting be considered as resolutions of Amalgamated Company. If any such resolutions have any monetary limits approved under the provisions of the Act or of any other applicable statutory provisions, then said limits, as are considered necessary by the Board of Directors of Amalgamated Company, shall be added to the limits, if any, under the like resolutions passed by Amalgamated Company.

18. **CONSOLIDATION OF SHARE CAPITAL AND AMENDMENT TO MEMORANDUM OF ASSOCIATION OF AMALGAMATED COMPANY TO CAPITAL CLAUSE**

18.1 **TRANSFER OF AUTHORIZED SHARE CAPITAL**

18.1.1 Upon coming into effect of this Chapter, the Authorized Equity Share Capital of Amalgamating Company-1 being Rs. 23,50,000/- (Rupees Twenty Three Lakhs Fifty Thousand Only), Amalgamating Company-2 being Rs. 1,15,00,000/-/- (Rupees One Crore Fifteen Lakhs only), Amalgamating Company-3 being Rs. 2,00,00,000/-/- (Rupees Two Crore only) shall be, added to the Authorized Share Capital of Amalgamated Company, without any further act or deed and without any further payment of the stamp duty or the registration fees.

18.1.2 Upon coming into effect of this Chapter, the Authorized Redeemable Preference Share Capital of Amalgamating Company-1 being Rs. 5,96,50,000/- (Rupees Five Crore Ninety Six lakh Fifty thousand Only), Amalgamating Company-2 being Rs. 2,45,00,000/- (Rupees Two Crore Forty Five Lakhs only), Amalgamating Company-3 being Rs. 1,10,00,000/- (Rupees One Crore Ten Lakh only), shall be, added to the Authorized Share Capital of Amalgamated Company, without any further act or deed and without any further payment of the stamp duty or the registration fees.

18.1.3 Consequently, Clause V of the Memorandum of Association of Amalgamated Company shall be replaced as under:

For, Andura Infrastructure Products Pvt. Ltd. Director

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Clause V of Memorandum of Association: -

"The Authorized Share Capital of the Company is Rs.17,90,00,000/- [Rupees Seventeen Crore Ninety Lakh Only] divided into 8,38,500 Equity Shares of Rs. 100/- [Rupees Hundred only] and 9,51,500 Preference Shares of Rs. 100/- [Rupees Hundred only] with such rights, privileges and conditions attached thereto as may be determined by the General Meetings at the time of issue. The Company has and shall always have the power to divide the Share capital from time to time and to vary, modify and abrogate any rights, privileges, conditions attached to the Share in such a manner as may from the time being provided in the regulations of the Company".

18.2 Under the accepted principle of Single Window Clearance, it is hereby provided that the above referred change, viz. Change in the Capital Clause and its reorganization shall become operative on the scheme being effective by virtue of the fact that the Shareholders of Amalgamated Company, while approving the scheme as a whole, have also resolved and accorded the relevant consents as required respectively applicable provisions of the Companies Act, 2013 or the Companies Act, 1956 and shall not be required to pass separate resolutions or any other applicable provisions of the Companies Act 1956/ 2013 would be required to be separately passed.

19. RESTRUCTURE IN THE FORM OF CAPITAL REDUCTION OF THE AMALGAMATED COMPANY

19.1 Upon the Scheme being effective, 1,94,700 equity shares held by Amalgamating Company 3 in the Amalgamated Company, shall stand cancelled by operation of law as the consequence of amalgamation. The issued, subscribed and paid up share capital of Amalgamated Company shall stand reduced from Rs. 3,13,80,000/- to Rs. 1,19,10,000/ -, i.e to the extent of Rs. 1,94,70,000/-

19.2 The above referred reduction of equity share capital being consequential in nature is proposed to be effected as an integral part of the Scheme. The approval of the members and creditors of the Amalgamated Company to the proposed Scheme shall be deemed to be their approval under the provisions of Section 66 of the Companies Act, 2013 and all other applicable provisions of the Act and the Amalgamated Company shall not be required to undertake any separate proceedings for the same. The order of the Hon'ble NCLT sanctioning the Scheme shall be deemed to be an Order under subsection (3) of the Section 66 of the Companies Act, 2013. In view of the same, the

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Amalgamated Company shall not be required to separately comply with Section 66 of the Companies Act, 2013 or any other provisions of Companies Act, 1956 or Companies Act, 2013.

19.3 However, considering the issue of new equity shares as envisaged in Clause 14.1 and 14.2, there will be net reduction in the Issued, Subscribed and Paid up equity Share Capital of the Amalgamated Company by Rs. 1,36,04,600-

20. PROFITS, DIVIDENDS, BONUS / RIGHTS SHARES

With effect from the Appointed Date, Amalgamating Companies shall not without the prior written consent of the Amalgamated Company, utilize the profits, if any, for declaring or paying of any dividend to its shareholders and shall also not utilize, adjust or claim adjustment of profits/ reserves, as the case may be earned/ incurred or suffered after the Appointed Date.

21. APPLICATIONS/PETITIONS TO NATIONAL COMPANY LAW TRIBUNAL

The Companies shall, with all reasonable dispatch, make applications/petitions to the National Company Law Tribunal at Ahmedabad pursuant to Sections 230 to 232 read with other applicable provisions of the Companies Act, 2013, as may be applicable, from time to time, for holding/dispensing with the meetings of the shareholders and/or Creditors of all the Companies and obtaining one or more orders sanctioning this scheme and carrying this scheme into effect.

22. MODIFICATIONS/AMENDMENTS TO THE SCHEME

22.1 The Board of Directors of the Companies may assent from time to time, on behalf of all persons concerned including the shareholders, to any modifications or amendments or additions to the Scheme or to any conditions or limitations which either the Board of Directors of the Companies may deem fit or which the NCLT and/or any competent Authority, if any, under the law may deem fit, to approve of or impose and which the Board of Directors of the Companies may in their discretion, deem fit, and to resolve all doubts or difficulties that may arise in carrying out and implementing this Scheme and to do all acts, instruments, deeds, matters and thing necessary or to review position relating to the satisfaction of the conditions of this Scheme and if necessary, to waive any of those (to the extent permissible under law) for bring the scheme into effect. In the event of any of the conditions that may be imposed by the NCLT or other authorities, which the Companies may find unacceptable for any reason, whatsoever, then the Companies are at liberty to withdraw the Scheme. The aforesaid powers of the Companies may be exercised by their respective

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For, NOVA PROPERTIES PVT. LTD.

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD. DIRECTOR

Board of Directors, or a committee of the concerned Board of Directors, or any director authorized in that behalf by the concerned Board of Directors.

22.2 For the purpose of giving effect to the Scheme or to any modifications or amendments thereof, or additions thereto, the other Companies may give and hereby authorized to determine and give all such directions as are necessary including directions for settling or removing any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all parties in the same manner as if the same were specifically incorporated in this Scheme.

22.3 If any terms or provisions of this Scheme are found to be or interpreted to be inconsistent with any of the Applicable Law(s) prevailing in India at a later date, whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the provisions of the Applicable Law(s)shall prevail. This Scheme shall then stand modified to the extent determined necessary to comply with the said laws. The power to make such amendments as may become necessary shall vest with the Board of Directors of the Companies, which power shall be exercised reasonably in the best interests of the companies concerned.

22.4 Notwithstanding clause 22.1, 22.2 and 22.3, the Companies (acting through their respective Board of Directors) shall be at liberty to withdraw or modify the Scheme for the reason of any condition or alteration imposed by the NCLT or any other governmental/regulatory authority not being acceptable to them.

23. CONDITIONALITY OF THE SCHEME

The effectiveness of the Scheme is conditional upon and subject to:

23.1 The Scheme being approved by the respective requisite majorities of the various classes of Shareholders and creditors of the Companies, as required under the Act.

23.2 The sanction of the Tribunal under Section 230 to 232 of the said Act, whether with or without any modifications and amendments as the Tribunal may deem fit, in favor of the Companies and to the necessary Orders under Section 232 of the said Act, being obtained.

23.3 Certified copies of the Orders of the Tribunal being filed by the Companies with the Registrar of Companies having jurisdiction over each of such Companies.

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24. COST, CHARGES AND EXPENSES

All costs, charges, taxes including duties, levies and all other expenses, if any, arising out of/or incurred in securing approvals and sanctions for the Scheme and matters incidental thereto shall be borne and paid by Amalgamated Company.

25. MISCELLENEOUS

Till the event of this Scheme being effective, Amalgamating Companies and the Amalgamated Company shall continue to hold their respective Annual General Meeting and other meetings in accordance with the relevant laws and shall continue to comply with all their statutory obligations in the same manner, as if this scheme does not exist.

26. APPROVALS / SANCTIONS NOT FORTHCOMING

In the event any of the approvals and sanctions as mentioned under clause 23 of the Scheme are not obtained, completed or forthcoming, the Scheme shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as in contemplated hereunder, or as to any right, liability or obligation which has arisen and accrued pursuant thereto and which shall be preserved or worked out as specifically provided in the Scheme or as may otherwise arise in law. In such event, the Board of Directors of the respective Companies, shall be entitled to withdraw this Scheme prior to the Effective Date.

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DIRECTOR

For, Andura Infrastructure Products Pvt. Ltd.

Director

DIRECTOR

Annexure-B

NOVA PROPERTIES PRIVATE LIMITED

CIN : U45201GJ2002PTC040499
Regi. Office : APM Mall, Near Devpriya Bunglow,
Opp. Nilkanth Palace, Anandnagar Char Rasta,
Prahladnagar, Ahmedabad-380015

List of Assets of Nova Properties Private Limited as on 30.11.2022 to be transferred to Goyal & Co. (Const) Private Limited, pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

Schedule

Part I

Particulars of Freehold Properties -

(i) Land : Nil

(ii) Building : Nil

Part II

Particulars of Leasehold Properties

(i) Land : Nil

(ii) Building : Nil

Part III

A. Particulars of Investment in Shares & Securities :

Sr. No.	No. of Shares and Securities and its description	Face Value	Book Value (Rs.)
1	Amplus Realty Find – 1	-	25,03,770/-
2	Amplus Realty Find – 2	-	2,46,705/-
3	Birla Sun Life Short Term	-	5,00,00,000/-
4	ICICI Prudential Corporate Bond Fund	-	3,00,00,000/-
5	¤ ICICI Prudential Mutual Fund Collection 1	-	4,00,00,000/-
6	IDFC Corporate Bond Fund	-	10,00,00,000/-
7	¤ Nippon India Floating Rate Fund	-	5,00,00,000/-
8	Reliance Banking & PSU Debt Fund	-	10,00,00,000/-
9	Reliance Short Term Fund	-	13,00,00,000/-
10	Religare Invesco Liquid Fund	-	2,00,00,000/-
11	UTI Mutual fund	-	5,00,00,000/-
	TOTAL		**57,27,50,475/-**

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1	The Kalupur Comm Co Op Bank Ltd, Panchvati Branch, Ahmedabad	Current Account	01320103257
2	Kotak Mahindra Bank, Chandan House Branch, Ahmedabad	Current Account	08122010001816

C. Registration with Various Authorities under respective laws, Bodies etc. :

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AAECA6451G
TDS DEPARTMENT	TAN	AHMN01951F
GST DEPARTMENT	GST	24AABCN4138N1ZC
REGISTRAR OF COMPANY'S CIN NO.		U26966GJ2004PTC043695

D. VEHICLES : (IF ANY) Description and Registration No.

TOYOTA FORTUNER – GH-01-RH-3613 - WDV AS ON 31.03.2022 IS RS.1,69,869/-

For, NOVA PROPERTIES PVT. LTD.

Director / Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Signature of the Director of the company

ORCHID PLAZA DESIGN AND DEVELOPERS PRIVATE LIMITED
CIN : U45201GJ2006PTC047742
Regi. Office : APM Mall, Near Devpriya Bunglow,
Opp. Nilkanth Palace, Anandnagar Char Rasta,
Prahladnagar, Ahmedabad-380015

List of Assets of Orchid Plaza Design And Developers Private Limited as on 30.11.2022 to be transferred to Goyal & Co. (Const) Private Limited, pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

Schedule

Part I

Particulars of Freehold Properties

(i) Land : Nil

(ii) Building : Nil

Part II

Particulars of Leasehold Properties

(i) Land : Nil

(ii) Building : Nil

Part III

A. Particulars of Investment in Shares & Securities :

No. of shares and description Face Value Current Market Value

Sr. No.	Mutual Funds and Description	Face Value (RS.)	Book Value (Rs.)
1	IDFC Cash Fund	-	17,27,68,011/-
2	Reliance Liquid Fund	-	9,66,09,820/-
	Total		**33,02,64,800/-**

ORCHID PLAZA DESIGN AND DEVELOPERS PRIVATE LIMITED
CIN : U45201GJ2006PTC047742
Regi. Office : APM Mall, Near Devpriya Bunglow,
Opp. Nilkanth Palace, Anandnagar Char Rasta,
Prahladnagar, Ahmedabad-380015

B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1	The Kalupur Comm Co Op Bank Ltd. Panchvati Branch, Ahmdabad	Current	01320103468
2	Kotak Mahindra Bank Chandan House Branch, Ahmedabad	Overdraft Facility	08122010001513

C. Registration with Various Authorities under respective laws, Bodies etc. :

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AAACO8310J
TDS DEPARTMENT	TAN	AHMO00659B
GST DEPARTMENT	GST	24AAACO8310J1ZM
REGISTRAR OF COMPANY'S CIN NO.		U45201GJ2006PTC047742

D. VEHICLES : (IF ANY) Description and Registration No.
No Value required.

\- NIL (if not applicable)

FOR, ORCHID PLAZA DESIGN AND DEVELOPERS PVT. LTD.

DIRECTOR

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Signature of the Director of the company

ANDURA INFRASTRUCTURE PRODUCTS PRIVATE LIMITED

CIN : U26966GJ2004PTC043695

Regi. Office : 2nd Floor, APM Mall, Near Devpriya Bunglow, Opp. Nilkanth Palace, Anandnagar Char Rasta, Prahladnagar, Ahmedabad-380015

List of Assets of Andura Infrastructure Products Private Limited as on 30.11.2022 to be transferred to Goyal & Co. (Const) Private Limited pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

Schedule

Part I

Particulars of Freehold Properties

(i) Land : Nil

(ii) Building : Nil

Part II

Particulars of Leasehold Properties

(i) Land : Nil

(ii) Building : Nil

Part III

A. Particulars of Investment in Shares & Securities :

Sr. No.	No. of Shares and Description	Face Value	Investment Value (Rs.)	Book value after IND AS (Rs.)
1	900000 Equity Shares of Bapa Real Estate Pvt. Ltd.	10	90,00,000/-	15,66,00,000/-
2	158800 Equity Shares of Galaxy Real Estate Developers (Guj) Pvt Ltd	10	15,88,000/-	15,41,94,800/-
3	194700 Equity Shares of Goyal & Co. (Const) Pvt Ltd.	100	1,94,70,000/-	1,94,70,000/-
	Total		**3,00,58,000/-**	**33,02,64,800/-**

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1	The Kalupur Comm Co Op Bank Ltd, Panchvati Branch, Ahmedabad	Current Account	01320103257
2	Kotak Mahindra Bank, Chandan House Branch, Ahmedabad	Current Account	08122010001816

C. Registration with Various Authorities under respective laws, Bodies etc. :

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AAECA6451G
REGISTRAR OF COMPANY'S CIN NO.		U26966GJ2004PTC043695

D. VEHICLES : (IF ANY) Description and Registration No.

- NIL

For, Andura Infrastructure Products Pvt. Ltd.

Director

Signature of the Director of the company